



CITY OF CAMBRIDGE
OFFICE OF THE CITY SOLICITOR

Lawsuits Challenging Federal Actions that Involve the City, or of Special Interest to the City – January 26, 2026 Update

Lawsuit Name	Case No. / Case Citation	Summary of Lawsuit	Status
King County v. Turner	25-3664 (9 th Cir.); 25-cv-00814 (W.D. Wash.)	The City of Cambridge is a plaintiff in this case. Plaintiffs sued Secretary of Transportation, HUD, Secretary of HHS, and HHS for imposing conditions on grants to local governments, including HUD Continuum of Care and DOT grants. The conditions include prohibitions on DEI, "gender ideology," "elective abortions," and aid to immigrants. The imposed conditions threaten over \$12 billion dollars in federal funding. Local governments argue that in imposing conditions on grants, the federal government violates the separation of powers, Spending Clause, the Tenth Amendment, the Due Process Clause (Vagueness), and the Administrative Procedure Act (APA).	Preliminary Injunction entered in favor of local governments on June 3, 2025. The Preliminary Injunction Order has allowed the City to enter into grant agreements with HUD for the Continuum of Care grant funds. Federal government appealed. Appeal pending and the Appeals Court to hear argument on February 9, 2026. A Motion for Preliminary Injunction, asking the Court to order that the conditions do not apply to additional grants, such as CDBG grants, was granted on August 12, 2025. Federal government appealed the August 12 order. On November 12, 2025, the District Court allowed plaintiffs to amend the complaint a third time to add 15 new local governmental entities. A further motion for preliminary injunction was granted by the District Court, on January 21, 2026, extending relief to further local governmental entities.
San Francisco v. Trump	25-3889 (9 th Cir.) 25-cv- 01350 (N.D. Cal.)	The City of Cambridge is a plaintiff in this case. Lawsuit to enjoin enforcement of President Trump's initial Sanctuary Jurisdiction Executive Order (EO). Plaintiffs argue the EO violates the Tenth Amendment, Separation of Powers, Spending Clause, and Due Process Clause.	Preliminary Injunction entered in favor of local governments, ordering that the Federal Government cannot enforce the Sanctuary Jurisdiction EO. Federal Government Appealed. Appeal oral argument scheduled for December 5, 2025. Second Amended Complaint (SAC) filed that added Cambridge as a plaintiff. Federal government moved to dismiss the SAC. On January 20, 2026, the District Court denied the motion to dismiss the SAC. Plaintiffs filed a second Motion for Preliminary Injunction asking the Court to prevent the Federal Government from enforcing Sanctuary Jurisdiction EOs against all of the Plaintiffs, including Cambridge. The Court allowed the motion.
NAEH v. HUD	25-cv-00636 (D.R.I.)	The City of Cambridge is a plaintiff in this case. This case is similar to <u>State of Washington v. HUD</u> (see below) but extends the litigation from the state level to local nonprofits and governments. Multiple nonprofits and local governments, including Cambridge, are challenging HUD's changes to the Continuum of Care grant program, which has provided funds to local governments and organizations to fund permanent housing for vulnerable populations. The plaintiffs argue that reversing previous HUD Housing First policy and the imposition of unlawful conditions violates the APA, the Separation of Powers, the Spending Clause, and the First Amendment. The plaintiffs are requesting that the Court order HUD to grant CoC funds on the same basis it did in the last fiscal year, and to strike the unlawful conditions.	Plaintiff nonprofits and local governments filed a motion for preliminary injunction, which was granted on December 19, 2025. An order expediting summary judgment was also granted by the Court. An amended complaint and motion for summary judgment were filed by plaintiffs on January 14, 2026.



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California v. United States DOT	26-1026 (1 st Cir.) 25-cv-00208 (D.R.I.)	An order in this case applies to the City of Cambridge. States challenge an April 24, 2025, letter issued by Secretary Duffy, requiring recipients of DOT grants to cooperate with federal immigration enforcement. The letter does not define what constitutes “cooperation.” States allege that the conditions are beyond DOT’s authority.	On November 4, 2025, District Court entered summary judgment for the plaintiff states holding that immigration enforcement conditions (IEC) imposed by the Department of Transportation in exchange for federal funding are unlawful. The Court wrote, “The IEC is declared unlawful and ordered vacated from all grant agreements administered by [USDOT]. [USDOT is] permanently enjoined from implementing or enforcing the IEC against the States, or otherwise attempting to condition federal transportation funding on State cooperation with federal civil immigration enforcement.” The District Court subsequently clarified that its permanent injunction order extends to all plaintiff states and local subdivisions within those states, which includes Cambridge. Federal government appealed to 1 st Cir.
State of New York v. U.S. Department of Justice (PWORA case)	25-2099 (1 st Cir.) 25-cv-00345 (D.R.I.)	An order in this case applies to the City of Cambridge. States challenged the revocation of various exemptions under the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA). PRWORA is part of the federal welfare system and governs the eligibility of noncitizens for public benefits. Several federal agencies issued new requirements requiring recipients of federal funding to be checked for immigration status. This has meant that many undocumented immigrants who previously had access to certain federal benefits under the agency exemptions are no longer exempted. This also means that states administering federal benefit programs are now required to implement verification schemes to verify the status of benefit recipients, even if the programs previously did not require such verification.	On July 30, the federal defendants stipulated they would not enforce the challenged notices against the plaintiff states until September 10, 2025. The federal defendants also stipulated that they would not enforce the notices based on conduct occurring in the plaintiff States prior to September 11, 2025; funds expended in the plaintiff States prior to September 11, 2025; or any other actions taken in reliance on this Stipulation prior to September 11, 2025. Since Massachusetts is a plaintiff, this applies to Cambridge. On September 10, 2025, the Court granted plaintiffs’ motion for preliminary injunction, which applies to Cambridge. On September 23, 2025, plaintiffs filed an amended complaint. Defendants moved to stay the case because of the Federal shutdown. The District Court denied the request. An appeal of the preliminary injunction ruling was filed on November 7, 2025. On December 11, 2025, the appeal was voluntarily dismissed pursuant to a joint stipulation. On December 4, 2025, the plaintiff states filed a third amended complaint. On December 8, 2025, a stipulation was filed wherein the federal defendants consented to the third amended complaint and agreed to stay enforcement and application of the HUD PRWORA Notice until judgment issues.
City of Chicago v. Noem	25-cv-12765 (N.D. Ill.)	The City of Boston is a plaintiff in this case. Also, Cambridge, as part of “Boston-Cambridge-Newton, MA-NH Funded Urban Area,” receives UASI funds that are at issue in the case. Chicago, Boston, and other cities allege that DHS and FEMA are violating separation of powers principles, taking action not authorized by Congress, violating Congress’ power of the purse, and violating the APA because they are compelling compliance with anti-DEI requirements as part of their terms and conditions for local governments, like the City of Cambridge, to receive funding for programs supporting mitigation and prevention of natural disasters, terrorist attacks, mass shootings, and other complex emergencies.	Complaint filed on October 20, 2025. Plaintiffs filed a motion for preliminary injunction on October 24, 2025. On November 21, 2025, the District Court entered a preliminary injunction. In doing so, the court found that the federal government likely violated the APA. Plaintiffs have leave to file an amended complaint by January 21, 2026. On January 20, 2026, the federal government filed a notice appealing the preliminary injunction.



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R.I. State Council of Churches v. Rollins	25A539 (Supreme Court) 25-2089 (1 st Cir.) 25-cv-00569 (D.R.I.)	Similar case to <u>MA v. USDA</u> (see below) but extends the litigation beyond individual states to the whole nation. A coalition of local governments, charitable, legal, and faith-based nonprofit organizations, small businesses, and workers' rights organizations argue the federal government violated the APA and federal appropriations law when it ignored congressional mandate to fund Supplemental Nutrition Assistance Program (SNAP) benefits and revoked work requirement waivers in localities with persistent unemployment.	On October 31, 2025, the District Court granted a TRO and ordered the federal government to pay full SNAP benefits by November 3, 2025, or partial payments by November 5, 2025. On November 3, USDA stated it "will fulfill its obligation to expend the full amount of SNAP contingency funds," but it will not use other funds to provide full SNAP payments for November 2025. On November 6, the District Court held the federal government did not comply with its October 31 order and ordered full November SNAP payments by November 7. On November 9, the 1 st Cir. upheld the District Court order enforcing the October 31 TRO. The Supreme Court extended an administrative stay of the TRO through November 13, 2025, and the federal government indicated its intent to continue to pursue a stay of the District Court's orders from the Supreme Court. On November 13, 2025, the federal government withdrew its November 7 stay application to the Supreme Court on mootness grounds. On December 4, 2025, upon the federal government's motion, judgment dismissing the 1 st Circuit appeal was entered. Summary judgment briefing ends on or about February 27, 2026.
Newsom v. Trump	25-3727; 25-5553 (9 th Cir.); 25-cv-04870 (N.D. CA)	The City of Cambridge joined amicus briefs in the District Court and in the Appellate Court. California seeks order prohibiting the Department of Defense from federalizing the CA National Guard and deploying it to conduct domestic law enforcement without meeting statutory requirements.	U.S. District Court ruled that federal deployment of CA National Guard was illegal and violated the 10 th amendment. On June 15, 2025, the City of Cambridge joined an amicus brief arguing that the 9 th Circuit should not stay the District Court's ordered temporary relief. On June 19, 2025, the Ninth Circuit stayed the lower court order pending appeal. On October 7, 2025, California requested the Ninth Circuit vacate the June 19 th order or grant a motion for an injunction pending appeal. After a three-day bench trial, on September 2, 2025, the District Court ruled that the federal government violated the Posse Comitatus Act when it unlawfully deployed National Guard troops to Los Angeles for immigration enforcement operations. The District Court's ruling will go into effect on September 12, 2025, and bar "deploying, ordering, instructing, training, or using the National Guard currently deployed in California, and any military troops heretofore deployed in California, to execute the laws, including but not limited to engaging in arrests, apprehensions, searches, seizures, security patrols, traffic control, crowd control, riot control, evidence collection, interrogation, or acting as informants." On September 2, 2025, plaintiffs moved for a preliminary injunction to enjoin an August 5, 2025 order federalizing and deploying 300 members of California's National Guard for ninety days and to return control of the California National Guard to Governor Newsom. On September 4, 2025, the 9 th Cir. stayed this order pending an appeal by the federal government. Oral argument before a panel of the 9 th Cir. took place on October 22, 2025. That same day, a judge of the court requested a vote to rehear the case en banc. That vote failed. On October 29, 2025, the 9 th Circuit ruled that the District Court retains jurisdiction over the plaintiffs' challenge to the August 5 order. On November 4, 2025, the District Court lifted its stay of proceedings related to plaintiffs' motion to enjoin the August 5 order and set an expedited briefing schedule. A hearing took place on December 5, 2025, on the plaintiffs' renewed motion for preliminary injunction. A motion to dismiss the complaint was filed that same day by the federal government.



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			On December 10, 2025, the District Court issued an order enjoining deployment of the CA Nat'l. Guard in Los Angeles and directed return of control of the CA Nat'l. Guard to Gov. Newsome. The federal government appealed this order. After the Supreme Court issued its decision in the related Illinois case, the federal government announced the withdrawal of troops from Los Angeles, Chicago, and Portland.
Commonwealth of MA v. National Institutes of Health, et al, and other associated cases	25-1343 (1 st Cir.); 25-cv-10338 (D. Mass.)	The City of Cambridge joined an amicus brief in this case. MA argues that cap of 15% reimbursement for all new grants, regardless of the indirect cost needs of the institution, violates the Administrative Procedure Act.	U.S. District Court issued a final judgment enjoining federal government's 15% cap on reimbursement for all new grants. Federal government appealed. On January 5, 2026, the Appeals Court affirmed the lower court judgment.
United States v. City of Rochester	25-cv-06226 (W.D.N.Y.)	The City of Cambridge joined an amicus brief in this case. Federal government sued Rochester seeking injunctive relief holding that sanctuary policies violate the Supremacy Clause.	Cross motions for judgment on the pleadings filed by both parties. Amicus brief, in which Cambridge joined, filed on August 28, 2025. Case dismissed, without prejudice, as moot. Federal government filed an amended complaint on December 19, 2025.



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State of Oregon v. Trump	25-7194 25-6268 (9 th Cir.) 25-cv-01756 (D. Ore.)	The City of Cambridge joined an amicus brief in this case in the 9th Circuit. Oregon seeks an order prohibiting the federal government from federalizing National Guard troops and deploying them to conduct domestic law enforcement without meeting statutory requirements and in violation of the U.S. Constitution.	District Court granted two temporary restraining orders (TRO), expiring on October 18 and 19, 2025, enjoining federal government from deploying federalized National Guard troops in or to Oregon. A panel of the 9 th Cir. stayed the first TRO, allowing the President to continue federalizing national guard troops. The en banc 9 th Cir. then stayed the panel decision through October 28, 2025. The 9 th Cir. will rehear the matter en banc. On November 3, 2025, the federal government moved to dismiss the appeal. The appeals were consolidated. The District Court's November 7, 2025, permanent injunction was administratively stayed, pending further court order, to the extent it enjoins the federalization of the Oregon National Guard. On January 5, 2026, the District Court entered an order staying any remaining claims until the 9 th Cir. resolves Defendants' consolidated appeals or until further order. On January 8, 2026, the 9 th Cir. entered an order vacating its administrative stay. After a bench trial on the preliminary injunction and merits of the case, the District Court held and ordered that President Trump's order to deploy the National Guard to Portland was unlawful and unconstitutional and the federal government is permanently enjoined from deploying members of any state's National Guard to Oregon based on the facts for which deployment was ordered in this case. Federal government appealed. After the Supreme Court issued its decision in the related Illinois case, the federal government announced the withdrawal of troops from Los Angeles, Chicago, and Portland.
State of Illinois v. Trump	25A443 (Supreme Court) 25-2798 (7 th Cir.) 25-cv-12174 (N.D. Ill.)	The City of Cambridge joined amicus filings in this case in the 7th Circuit and the Supreme Court. Illinois seeks an order halting the illegal and unconstitutional federalization and deployment of members of the National Guard of the United States, including both the Illinois and Texas National Guard.	District Court granted temporary restraining order (TRO), expiring on October 23, 2025, enjoining federal government from federalizing and deploying National Guard troops within Illinois. Federal government appealed. Appeal pending. The Appeals Court, pending further argument, entered an order allowing federalized National Guard troops deployed to Illinois to remain in the state, but those troops may not be deployed for purposes of law enforcement. On October 23, 2025, upon agreement by the parties, the District Court entered an order extending the TRO until final judgment on the merits is entered in the case. The Supreme Court directed the parties to brief the following question: "Whether the term 'regular forces' refers to the regular forces of the United States military, and, if so, how that interpretation affects the operation of 10 U. S. C. §12406(3)." After briefing, on December 23, 2025, the Supreme Court denied the federal government's request to stay the district court order preventing federalization and deployment of the National Guard within Illinois. Subsequently, on January 14, 2026, the parties represented to the District Court that they are engaged in settlement negotiations, and a joint stipulation to dismiss the appeal in the 7 th Circuit was filed on January 21, 2026. After the Supreme Court issued its decision, the federal government announced the withdrawal of troops from Los Angeles, Chicago, and Portland.



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United States v. City of Newark	25-cv-05081 (D. N.J.)	The City of Cambridge joined an amicus brief in this case. Federal government alleges local governments and officials violated the Supremacy Clause because sanctuary laws conflict with federal law, local laws unlawfully regulate the federal government, and local laws discriminate against the federal government by marking out federal immigration authorities for disfavored treatment. The federal government seeks declaratory and injunctive relief.	Defendant local governments moved to dismiss. No argument date yet. Federal government moved to stay this case due to the federal government shutdown. District Court of N.J. denied the request because the federal government's claimed allegations of a grave national emergency at the "Southern Border" warrant "this action proceeding in its ordinary course."
Lujan v. FMCSA	25-cv-1215 (D.C. Cir.)	The City of Cambridge joined an amicus brief in this case. Suit was filed contesting an interim final rule issued by the Federal Motor Carrier Safety Administration (FMCSA). FMCSA's rule bars asylum seekers, refugees, and Deferred Action for Childhood Arrivals (DACA) recipients with work authorization from holding non-domiciled commercial driver's licenses.	As of November 13, 2025, FMCSA's rule is stayed because rule likely improperly issued, was issued without notice and comment, FMCSA acted arbitrarily and capriciously, individual drivers/businesses would be irreparably harmed, and rule would more likely act to harm the public than protect it from a public safety standpoint. The City of Cambridge has also joined other local governments in submitting comments to the FMCSA on its decision to severely narrow the ability for non-citizens to obtain commercial driver's licenses. The case was ordered to be held in abeyance.
National TPS Alliance v. Noem	25-5724 (9 th Cir.)	The City of Cambridge joined an amicus brief in this case. An appeal of a summary judgment order vacating the federal government's vacatur and termination of TPS for Venezuela and vacatur of TPS for Haiti.	The amicus brief Cambridge joined was filed on November 12, 2025. No argument scheduled yet. In the underlying case, National TPS Alliance v. Noem, 25-cv-01766 (N.D. CA), the District Court granted on December 10, 2025, Plaintiffs' motion for declaratory relief, finding the vacatur of the January 17, 2025 extension of Venezuela's TPS designation and the termination of the 2023 TPS designation of Venezuela unlawful. The federal government separately appealed this order on January 8, 2026. That appeal is docketed as 26-187 (9th Cir.).



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Noem v. National TPS Alliance	25-4901 (9 th Cir.)	The City of Cambridge joined an amicus brief in this case. An appeal of an order postponing the effective date of the federal government’s vacatur of TPS for Honduras, Nepal, and Nicaragua.	In the underlying district court case, <u>NTPSA v. Noem</u>, 25-cv-05687 (N.D. CA), an order was entered, on July 31, 2025, continuing TPS for 60,000 individuals from Honduras, Nicaragua, and Nepal. The federal government appealed that order and, on August 20, 2025, a three-judge panel of the 9th Cir. granted the federal government’s request to stay, pending appeal, the district court order continuing TPS for those individuals. Briefs addressing the overall propriety of the lower court case were later filed by the parties and amici. Argument has not been scheduled. However, during the appeal the district court case continued to proceed, and on December 31, 2025, the district court entered an order that in part granted summary judgment for NTPSA on two of the APA claims. On January 8, 2026, the federal government appealed that ruling to the 9th Cir.
United States v. City of Boston	25-cv-12456 (D. Mass.)	The City of Boston is a defendant in this case, and the City of Cambridge joined an amicus brief in this case. Federal government sued Boston seeking injunctive relief holding that sanctuary policies violate the Supremacy Clause.	On November 17, 2025, Boston filed a motion to dismiss, and the City of Cambridge joined an amicus brief filed in the U.S. District Court in support of Boston. Federal government filed its opposition brief on January 7, 2026.
United States v. New York City	25-cv-04084 (E.D.N.Y.)	The City of Cambridge joined an amicus brief in this case. Federal government alleges local government violated the Supremacy Clause because sanctuary laws conflict with federal law. The federal government seeks declaratory and injunctive relief.	Defendant local government moved to dismiss. No argument date yet.



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Watson v. Republican Nat'l. Committee	24-1260 (Supreme Court)	The City of Cambridge joined an amicus brief in this case. Local election officials nationwide oppose a 5 th Circuit Court of Appeals decision invalidating post-Election Day ballot receipt deadlines and counting procedures, which would make the processing of provisional ballots, absentee ballots, and Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA) ballots impossible. This is an argument regarding whether federal law preempts state laws.	Case is currently being briefed.
State of Minnesota, et al. v. Noem, et al.	26-cv-00190 (D. Minn.)	The City of Cambridge joined an amicus brief in this case. Lawsuit to enjoin the unwanted federal law enforcement “surge” in Minnesota. Plaintiffs argue the “surge” violates the Tenth Amendment, Equal Sovereignty, and Administrative Procedures Act; is unconstitutional retaliation and viewpoint discrimination in violation of the First Amendment; and constitutes ultra vires executive action. The State of Illinois and City of Chicago, on January 12, 2026, filed a similar suit. 26-cv-321 (N.D. Ill.).	District Court converted plaintiffs’ motion for a temporary restraining order (TRO) to a motion for preliminary injunction (PI). Hearing on the PI motion to take place on or about January 23, 2026.
President and Fellows of Harvard College v. DHS, et al.	25-1627 (1 st Cir.) 25-cv-11472 (D. Mass.)	The City of Cambridge filed an amicus brief in this case. Harvard contests federal government’s revocation of Harvard’s ability to enroll foreign students and otherwise prevent foreign students from enrolling at Harvard.	U.S. District Court entered order enjoining federal government from “implementing, instituting, maintaining, or giving any force or effect” to the federal government’s revocation of Harvard’s ability to enroll foreign students. Court likewise enjoined presidential proclamation barring foreign students destined for Harvard. Federal government appealed. Appeal pending regarding injunction. Cambridge’s brief in support of Harvard filed on January 16, 2026.



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President and Fellows of Harvard College v. HHS, et al.	25-2230 (1 st Cir.) 25-cv-11048 (D. Mass.)	Harvard case. Harvard contests federal government’s withdrawal of federal funding. Harvard argues that the federal government did not take necessary steps to cancel federal funds.	On September 3, 2025, the District Court ruled that the federal government violated the Constitution, Title VI of the 1964 Civil Rights Act, and the APA when it froze more than \$2.6 billion in Harvard research funding. The ruling vacated the freeze orders and termination notices Harvard received from the federal government and permanently enjoined reimposition of unconstitutional conditions on funding. Final judgment entered on October 20, 2025. Federal government appealed the judgment on December 18, 2025.
United States v. Illinois, Cook County, & Chicago	25-cv-01285 (N.D. Ill.)	Case concerns a similar Welcoming Community Ordinance. Federal government sued Illinois, Cook County, and Chicago seeking declaratory and injunctive relief holding that sanctuary policies violate the Supremacy Clause.	On July 25 th , the District Court dismissed the case and upheld the sanctuary policies, including Chicago’s Welcoming Community Ordinance. Local government decisions not to participate in immigration enforcement are protected by the Tenth Amendment and not preempted by federal law. The federal government had until August 22, 2025, to amend its complaint. No amended complaint was filed. The case was dismissed with prejudice on August 26, 2025. On October 24, 2025, the federal government filed a notice of appeal.
City of Chicago v. United States Department of Homeland Security	25-cv-05462 (N.D. Ill.)	The City of Boston is a plaintiff in this case. Lawsuit seeks to enjoin federal government from freezing funding under the Securing Cities counterterrorism program (STC) and to require the federal government to process pending and future reimbursement requests pursuant to law. The complaint alleges that DHS is violating the separation of powers, that its actions are ultra vires, and that it is violating the APA.	No significant Court orders in this case. Summary judgment papers to be filed between December 1, 2025 and February 17, 2026.



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City of Chelsea v. Trump	25-cv-10442 (D. Mass.)	The Cities of Chelsea and Somerville are plaintiffs in this case. Lawsuit challenges Protecting the American People from Invasion EO and other executive actions related to withholding of federal funds based on immigration policy. The plaintiffs seek to enjoin the federal government from withholding federal funds based on sanctuary policies.	Somerville and Chelsea filed a Motion for Preliminary Injunction. On October 2, 2025, the District Court denied the Motion for Preliminary Injunction holding that the cities failed to demonstrate they would suffer imminent and irreparable harm without injunctive relief. On December 18, 2025, Somerville and Chelsea filed a second amended complaint.
Vasquez-Perdomo v. Noem	25A169 (Supreme Court) 25-4312 (9 th Cir.); 25-cv-05605	The City of Boston has filed an amicus brief in this case. Lawsuit seeks a temporary restraining order to enjoin ICE and CBP from engaging in unconstitutional and unlawful stops of Los Angeles residents during immigration sweeps. Plaintiffs allege ICE and CBP have a policy and practice of engaging in unconstitutional stops not based on reasonable, individualized suspicion of unlawful presence, but instead based on racial profiling.	District Court granted temporary restraining order, in favor of plaintiffs, regarding unlawful stops and access to counsel. The parties are briefing preliminary injunction and class certification in the District Court. On September 8, 2025, using its Emergency Docket, the Supreme Court entered a stay enjoining the temporary restraining order halting the federal government from “stopping individuals based solely on four factors: (1) their apparent race or ethnicity; (2) whether they spoke Spanish or English with an accent; (3) the type of location at which they were found (such as a car wash or bus stop); and (4) the type of job they appeared to work.” This means the federal government may continue to rely on these four factors alone to stop and seize individuals. Importantly, Justice Kavanaugh indicated in his concurring opinion that if the case eventually reaches the Supreme Court, then the Supreme Court will likely reverse any permanent injunctive relief similar to the temporary relief the District Court previously ordered. Case returned to lower courts for further proceedings. On October 21, 2025, the 9 th Cir. remanded the appeal, in part, to allow the district court to dissolve the Fourth Amendment TRO. Discovery proceeding in case.
Massachusetts v. USDA	25-cv-13165 (D. Mass.)	Similar case to <u>R.I. State Council of Churches v. Rollins</u> (see above). Massachusetts is the lead plaintiff in this case. Multiple states argue that the federal government’s decision not to use available contingency funds to pay SNAP benefits violates the APA. The states are suing to force the USDA to use available contingency funds for the November SNAP benefits.	The District Court heard arguments, on October 30, 2025, on whether to issue a temporary restraining order (TRO) forcing the USDA to fund November SNAP benefits. The Court issued a ruling stating that the federal government’s “suspension of SNAP benefits is contrary to law.” The court’s TRO is in force pending further order of the court. The parties went through extensive motion practice regarding whether full or reduced SNAP benefits will issue for November and funding therefore. This litigation is impacted by contemporaneous rulings in R.I. State Council of Churches v. Rollins.



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State of Washington v. HUD	25-cv-00626 (D.R.I.)	Similar case to <u>NAEH v. HUD</u> (see above). The Commonwealth of Massachusetts is a plaintiff in this case. Multiple states, including Massachusetts, are challenging HUD’s changes to the Continuum of Care grant program, which has provided funds to local governments and organizations to fund permanent housing for vulnerable populations. The plaintiffs argue that reversing previous HUD Housing First policy and the imposition of unlawful conditions violates the APA, the Separation of Powers, the Spending Clause, and the Tenth Amendment. The plaintiffs are requesting that the Court order HUD to grant CoC funds on the same basis it did in the last fiscal year, and to strike the unlawful conditions.	Plaintiff states filed a motion for preliminary injunction. On December 11, 2025, plaintiff states filed an amended complaint adding New Mexico as a plaintiff and new allegations related to the federal government’s withdrawal of the 2025 Notice of Funding Opportunity. The motion for preliminary injunction was granted on December 19, 2025. An amended complaint and motion for summary judgment were filed by plaintiffs on January 14, 2026.
United States v. California	25-cv-10999 (C.D. California)	Case concerns state laws regulating permissible uniforms for federal agents. Federal government argues that under the Supremacy Clause the States have no power to regulate “the operations of” the federal government – in this case how federal agents may dress and address the public.	Hearing held in January 2026 on federal government’s motion for a preliminary injunction to enjoin enforcement of state laws. Matter under advisement.
RICADV v. Kennedy	25-2229 (1 st Cir.) 25-cv-00342 (D.R.I.)	Case concerns non-profit coalition challenge to federal executive orders. Plaintiff nonprofit organizations challenge grant conditions as arbitrary, in excess of statutory authority, and unconstitutional where they seek to impose restrictions on DEI, gender ideology, and abortion.	A preliminary injunction blocks HHS and HUD from enforcing new grant conditions nationwide while the litigation is ongoing. The court determined that the federal government’s actions were arbitrary, exceeded statutory authority, and were likely unconstitutional. The injunction preserves previous grant terms and prevents the imposition of challenged restrictions imposed by executive orders 14168, 14169, and 14182. This PI applies to HUD grant programs where the conditions were imposed - including CDBG, HOME, ESG, Continuum of Care, and HOPWA. On December 22, 2025, the federal government appealed the preliminary injunction order. On January 5, 2026, an order entered voluntarily dismissing the federal government’s appeal.